IN THE COURT OF [JUDICIAL MAGISTRATE FIRST CLASS], [PLACE]

Complaint / Application No. ____ of 20__

MEMO OF PARTIES

[NAME OF AGGRIEVED PERSON], aged about [__] years, [son / daughter / wife of] [NAME OF FATHER / HUSBAND], resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Aggrieved Person / Applicant

Versus

1. [NAME OF RESPONDENT No. 1], aged about [__] years, [son / daughter / wife of] [NAME OF FATHER / HUSBAND], resident of [FULL ADDRESS WITH PIN CODE]; 2. [NAME OF RESPONDENT No. 2, if any], [PARTICULARS], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Respondent(s)

APPLICATION UNDER SECTION 12 OF THE PROTECTION OF WOMEN FROM DOMESTIC VIOLENCE ACT, 2005 FOR RELIEFS UNDER SECTIONS 18, 19, 20, 21 AND 22 OF THE ACT

Respectfully showeth:

1. That the applicant is an aggrieved person within the meaning of Section 2(a) of the Act. She is / was in a domestic relationship with the respondent(s) as [WIFE / DAUGHTER-IN-LAW / OTHER], and lived with them in the shared household at [ADDRESS].
2. That the respondent(s) subjected the applicant to domestic violence within the meaning of Section 3 of the Act, namely [PHYSICAL / SEXUAL / VERBAL AND EMOTIONAL / ECONOMIC ABUSE]. The specific incidents are: (a) on [DATE], [INCIDENT]; (b) on [DATE], [INCIDENT]; (c) [__].
3. That [a Domestic Incident Report was prepared by the Protection Officer on __ / the applicant approached __ on __] (Annexure A-__).
4. That the applicant has [been dispossessed from the shared household on __ / is apprehensive of dispossession], and has no means to maintain herself [and the child(ren)].
5. That this Court has jurisdiction under Section 27 of the Act, as the applicant [permanently or temporarily resides / the respondent resides / the cause of action arose] at [PLACE].
6. That [no other proceedings are pending / the following proceedings are pending between the parties: __].
7. That the domestic relationship and shared household are established by [relationship, periods of co-residence and address],

supported by [records]. For each respondent, the relationship and particular acts alleged are separately stated.

8. That the incidents are particularised chronologically: [date, place, respondent, physical / sexual / verbal / emotional / economic abuse, witness or record]. Continuing deprivation, threats or exclusion are [specific current facts].
9. That the applicant's residence and the cause of action bring the matter within Section 27 because [actual facts]. The Domestic Incident Report is [available and annexed / requested / not received]; its status is disclosed accurately.
10. That protection is sought against [identified conduct] under Section 18, and residence relief under Section 19 concerns [identified household, possession, exclusion and suitable precise direction]. Ownership of the household and competing rights are disclosed as [ ].
11. That monetary relief under Section 20 is itemised as [maintenance, loss of earnings, medical expenses, property loss], with supporting records; compensation under Section 22 rests on [injury and particulars]. Custody/visitation relief under Section 21, if needed, is justified by [child-welfare facts].
12. That the urgency for interim or ex parte relief under Section 23 is [imminent risk, dates and proof]. Where seeking an ex parte order, the affidavit in the prescribed form is separately supplied. Earlier civil, criminal and maintenance orders and payments are [schedule].
13. That [OPTIONAL: retain only after verifying the cited rule and these facts] [for maintenance relief only] earlier awards and sums received are [schedule]. Applying the overlapping-maintenance directions in Rajnesh v. Neha, adjustment is sought as [calculation], without treating that decision as proof of the separately pleaded domestic violence.

PRAYER

It is, therefore, respectfully prayed that this Hon'ble Court may kindly grant: (a) a protection order under Section 18; (b) a residence order under Section 19; (c) monetary relief of ₹[__] per month and [OTHER EXPENSES] under Section 20; (d) temporary custody of the child(ren) under Section 21; (e) compensation of ₹[__] under Section 22; and (f) interim and ex parte orders under Section 23 of the Act, along with any other relief this Hon'ble Court deems fit.

Place: [PLACE] Date: [DATE]

AGGRIEVED PERSON / APPLICANT

VERIFICATION

Verified at [PLACE] on [DATE] that the contents of paragraphs 1 to [__] of the above application are true and correct to my knowledge, the contents of paragraphs [__] to [__] are based on information received and legal advice, which I believe to be true, and the last paragraph is the prayer to this Hon'ble Court. No part of it is false and nothing material has been concealed therefrom.

APPLICANT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
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Advocate for the Applicant

IN THE COURT OF [JUDICIAL MAGISTRATE FIRST CLASS], [PLACE]

Complaint / Application No. ____ of 20__

[NAME OF AGGRIEVED PERSON], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Aggrieved Person

Versus

[NAME OF RESPONDENT(S)], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Respondent(s)

AFFIDAVIT

Affidavit of [NAME OF DEPONENT], [S/o / D/o / W/o] [NAME], aged about [__] years, resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER].

I, the above-named deponent, do hereby solemnly affirm and declare as under:

1. That I am competent to swear this affidavit. The accompanying [suit / petition / application] was drafted by counsel on my instructions, read over and explained to me in [LANGUAGE], and is adopted as part of this affidavit. Its facts are true to my knowledge or identified records; legal submissions rest on advice believed true.
2. That [no same or similar proceeding on this cause has been filed / all prior and pending proceedings, outcomes and orders are disclosed here: ___]. Nothing material is concealed.

DEPONENT

VERIFICATION

Verified at [PLACE] on [DATE] that paragraphs 1 and 2 above are true and correct to my knowledge and identified records, with legal submissions based on advice believed true. Nothing material has been concealed.

DEPONENT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
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Advocate for the Applicant

PREPARATION AND JUDGMENT APPLICATION

MODEL FOR GENERAL REFERENCE ONLY. NOT LEGAL ADVICE. These preparation notes are not part of the document to be signed or filed.

Model format for general reference only. Not legal advice. Adapt to the facts and the court's current rules. Source: masterlegalwork.com

Layout revised 17 October 2026 in the MLW house style: Legal paper, Arial 13, justified text and separate preparation notes. This is a model, not a prescribed court form. Check the current registry and e-filing requirements; mandatory court directions prevail. Use only identity particulars lawfully required by the forum and apply any required masking.

Updated 11 October 2026. Complete every material fact, retain only supported alternatives, and renumber before filing. These notes support professional adaptation; they do not supply missing evidence or guarantee relief.

Filing and relief checks. Tie each requested direction to the respondent’s conduct and the statutory relief. A two-paragraph general supporting affidavit does not substitute for the prescribed Section 23(2) affidavit or financial disclosures. Adjust overlapping maintenance awards.

Fact-specific authority. Rajnesh v. Neha, (2021) 2 SCC 324; 4 November 2020, overlapping-maintenance directions. For the monetary-maintenance component, disclose previous orders and receipts so the Court can adjust overlapping awards. This authority does not by itself prove domestic violence or establish a residence entitlement. Read the judgment

Source: https://indiankanoon.org/doc/117541087/

Before relying on any authority, compare the material facts, procedural stage, statutory version and precise relief; check subsequent treatment and applicable local practice. Keep the authority note separate from the signed pleading. For criminal procedure, determine Section 531 BNSS savings rather than select the code solely from the alleged offence date.

Note: To be sworn before an Oath Commissioner / Notary Public and stamped as required by the applicable rules.